

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 28, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:06 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR - Marian Orr, COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also attending: Kris Jones, City Clerk. The Pledge of Allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Mr. Cook and Mr. Roybal, agenda item #13 was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 14, 2020. Motion (per Consent Agenda) carried.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located southeast of the intersection of Powderhouse Road and East Carlson Street. Charles Bloom, Planning and Development Director, advised the annexation request is from Laramie County School District #1 for the purpose of constructing a new elementary school for grades 5-6 and explained there is an affiliated item for a zone change request and final plat on the agenda. Reporting for Public Services Committee, Mr. Case moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agricultural and Rural Residential to P Public District for a tract of land generally located southeast of the intersection of Powderhouse Road and East Carlson Street. Charles Bloom, Planning and Development Director, advised the zone change request is related to the previous annexation request from Laramie County School District #1 for the purpose of constructing a new elementary school for grades 5-6. Mr. Case moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Unified Development Code (UDC) to define, establish permissibility, and create specific use standards for the use ‘Mini Storage’. Mark Christensen, Planning and Development Department, explained the amendment stems from a specific request and updates storage-personal and storage-park and combines them as a cohesive

definition. Mr. Christensen advised that if a storage unit park is located in certain zoned areas, they must meet certain criteria and noted that staff recommends approval. Mr. Case moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Section 2.04.020, Mayor-Election-Term of Office, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the Municipal Code of the city of Cheyenne, Wyoming. Dr. Rinne explained the ordinance amendment changes the Mayor’s office employees from regular employees to “at will” so future mayors can choose their own staff members. Dr. Rinne clarified this change does not include the current staff members in the mayor’s office and that the changes is intended for the future. Mr. Case moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

RESOLUTION – Designating local banks as depositories for municipal funds. Brenda Moreaux, Deputy City Treasurer, provided information on the resolution stating statutes require municipalities designate local banks as depositories for municipal funds. She explained staff supports approval of a proposed substitute resolution which adds Wells Fargo Bank to the listing. Reporting for Finance Committee, Mr. Luna moved to adopt, seconded by Mr. White. Mr. Luna moved to amend by substitute dated December 16, 2020, seconded by Mr. Cook. Ms. Moreaux advised all banks were given a deadline to respond and Wells Fargo had a late response so the amendment now includes that bank. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6108)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2021 Budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & §16-4-113. Motion (per Consent Agenda) carried. (#6109)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for a Land and Water Conservation Fund Grant to replace playground safety surfacing (revenue to the city). Motion (per Consent Agenda) carried. (#6110)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Capital Heights Addition, Third Filing, a replat of all of Lots 3 and 4, Block 1018, Capital Heights Addition, Cheyenne, Laramie County, Wyoming (located west of and adjacent to Dillon Avenue north of Foyer Avenue, currently addressed as 3810 Dillon Avenue). Connor White, Planning and Development Department, provided information on the property including location and noted the final plat creates 4 lots for development of 4 townhomes. Mr. White reported both the Planning Commission and city staff recommend approval. Mr. Case moved to adopt, seconded by Mr. White. Comment was made in opposition of the resolution and how the proposal isn’t a good fit for an established neighborhood as this type of development could impact property value. Further comments were made acknowledging that city staff is making recommendations in compliance with current city code regulations. It was further noted that the proposed final plat meets existing city code regulations. Upon inquiry, Mr. White confirmed the replat consists of dividing 2 lots

into 4 individual lots and the town houses will be approximately 20 ft. wide. Comments were made relating to other similar lots within existing neighborhoods that have not had any negative impact on value or esthetics. Upon inquiry, members of Planning and Development staff and Ward I City Council members confirmed they have not received any negative communication or comments from area residents regarding the proposed development. Additional comments in support of the proposed infill project were voiced. Upon inquiry, Charles Bloom, Planning and Development Director, provided information on the notification process which is the responsibility of the contractor to provide to area residents. Mr. Bloom advised the required notice shall be provided and signage posted prior to the first Planning Commission meeting. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. (#6111)

RESOLUTION – Approving a Special Use Permit for oil and gas support services for Lot 1, Block 1, Plains Industrial Park, 2nd Filing, Laramie County, Wyoming. Charles Bloom, Planning and Development Director, advised the city received a request to authorize a drilling operation to go along with oil extraction that was approved by the Board of Adjustment in December of 2019. Mr. Bloom explained that Section 5.8.7 of the Unified Development Code allows the Governing Body to temporarily defer all or a portion of the development requirements in City Code and noted that the development will be temporary. Mr. Bloom reported the proposed substitute includes the following deferral contributions: Deposits in the City’s Agency Fund for \$29,389.59 in the Greenway Account, \$5,962.50 in the Forestry account and \$27,610.00 in the Park Enhancement Account which is park in lieu fees that are required at time of subdivision. He further advised that staff recommends approval and that the exhibit referenced in the resolution is the last item in the pdf packet. Mr. Case moved to adopt, seconded by Mr. Roybal. Mr. Case moved to amend by substitute dated December 17, 2020, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6112)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Coyote Ridge, a plat of a portion of the northwest quarter of Section 20, Cheyenne, Laramie County, Wyoming (located at the southeast corner of Powderhouse Road and East Carlson Street) – referred to Public Services Committee. (Sponsor – Rocky Case)

[CA] Grant award agreement with the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2020 in the amount of \$115,000.00, for the Cheyenne Regional Response Team #7 (DHS Grant Code: EMW-2020-SS-00062). Motion (per Consent Agenda) carried. (#7268)

[CA] Contract between the City of Cheyenne and Peak Wellness, Alcohol Receiving Center, to provide alcohol and drug detoxication services to individuals (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$115,000.00). (#7269)

[CA] Contract between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$17,500.00). (#7270)

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority to provide supportive senior services (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$25,000.00). (#7271)

[CA] Agreement between the City of Cheyenne, Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center (Replaces Contract No. 7165 approved 4/27/2020). Motion (per Consent Agenda) carried. (#7165)

[CA] Juvenile Housing Agreement between the City of Cheyenne and Laramie County for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex (Replaces Contract No. 7166 approved 4/27/2020). Motion (per Consent Agenda) carried. (#7166)

[CA] Contract Modification #1 to Contract #7181 between the City of Cheyenne and Waste Management of Colorado, Inc., Denver CO, for Waste Management Recycling Services to extend the term of the agreement to December 31, 2021 (Solid Waste Fund). Motion (per Consent Agenda) carried. (#7181)

[CA] Contract Modification #1 to Contract #7241 between the City of Cheyenne and Mid-America Pool Renovation, Inc., for the Cheyenne Aquatic Center Main Pool Shell Resurfacing Project (Specific Purpose Sales Tax Overage Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$43,850.00). (#7241)

[CA] Contract Modification #2 to Contract #7207 between the City of Cheyenne and Front Range Roofing Systems, LLC, for Fleet Maintenance Facility and Parks Maintenance Facility Roof Replacements (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$5,660.00). (#7207)

[CA] Contract Modification #2 to Contract #6927 between Wyoming Homeland Security and the City of Cheyenne extending the term of the grant through August 31, 2021 (DHS Grand Code: EMW-2018-SS-00065) – referred to Finance Committee.

[CA] Consideration of Bid #E-16-21 for furnishing three (3) new greens mowers, for the City of Cheyenne, Golf Division (Golf Improvement Fund). Motion (per Consent Agenda) carried (accepted bid from L.L. Johnson Distributing Company, Denver, CO, in an amount not to exceed \$113,030.10).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Appointments of Gus Lopez to the Cheyenne-Laramie County Board of Health; Wendy Soto and Erin LeBlanc to the Housing and Community Development Advisory Council; Dustin Brown, Richard Maxted, and Ben Moritz to the Board of Adjustment, and Michael Vigil to the Building Code Board of Appeals. Mr. Luna moved to approve, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Announcement was made of the Sine Die and First Regular Meetings of the Governing Body will be held Monday, January 4, 2021 beginning at 6:00 p.m. in the Cheyenne Civic Center, 510 West 20th Street, Cheyenne, Wyoming and via electronic conference meeting.

Announcement was made that due to the Sine Die and First Regular Meetings of the Governing Body on Monday, January 4, 2021, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at Noon on Tuesday, January 5, 2021 via electronic conference meeting and Public Services Committee will meet at Noon on Wednesday, January 6, 2021 via electronic conference meeting. Additionally, all Finance Committee meetings for 2021 will be held at Noon instead of 11:00 a.m.

Announcement was made of a Public Hearing to be held January 11, 2021 at 6:00 p.m. via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located southeast of the intersection of High Plains Road and South Greeley Highway.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:35 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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